

Court No. - 40

Case :- WRIT - C No. - 6101 of 2025

Petitioner :- Rishikesh Madi Tripathi

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ashok Kumar Tripathi, Vinod Kumar Tirpathi

Counsel for Respondent :- C.S.C.

Hon'ble Shekhar B. Saraf, J.

Hon'ble Vipin Chandra Dixit, J.

Issue notice to the respondents.

Steps be taken within a week.

In addition to normal mode of service, the petitioner is directed to serve respondents personally, through dasti.

Office is directed to provide dasti to the learned counsel appearing on behalf of the petitioner.

List this matter on March 18, 2025, as fresh.

Order Date :- 3.3.2025

Kuldeep

(Vipin Chandra Dixit, J.) (Shekhar B. Saraf, J.)

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Hon'ble Kshitij Shailendra,J.

1. Heard learned counsel appearing on behalf of the petitioner and Ms. Rishu Mishra, learned counsel appearing on behalf of respondents.

2. In the present writ petition following prayers have been made by the petitioner:-

"A) to issue writ, order or direction in the nature of mandamus directing the respondent no.2, Executive Engineer, Electricity Urban Distribution Division, Purvanchal Vidyut Vitram Nigam Limited, Taramandal, Gorakhpur to restore and correct the electricity meter of the petitioner to 2 KW, as was originally sanctioned, and thereafter recalculate and correct the outstanding electricity bill accordingly, so that the petitioner can deposit the correct amount.

B) to issue a writ, order or direction in the nature of mandamus directing the respondents to allow the petitioner to deposit the outstanding dues in easy installments, as he is willing to pay all legitimate charges in a reasonable manner.

C) to issue any other suitable order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case."

2. Upon hearing the learned counsel appearing on behalf of the parties, this writ petition is disposed of with direction upon the petitioner file an application/objection under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

3. In the event such application/objection is filed by the petitioner within a period two weeks from date, the authority concerned shall decide the said application/objection within a period of six weeks from date of filing of such application/objection before it, after granting an opportunity of hearing to the petitioner.

4. With the aforesaid direction, the writ petition is disposed of.

Order Date :- 18.3.2025

Dev

(Kshitij Shailendra,J.)

(Shekhar B. Saraf,J.)